**President's Rule:** The Governor has no emergency powers to meet the situation arising from external aggression or armed rebellion but he has the powers to make a report to the President that the government of the state cannot be carried on in accordance with the provisions of the Constitution (Article 356), thereby inviting the President to assume to himself in the functions of the government of the state or any of them.

### Advocate General




Each state has an advocate general who is an official corresponding to the Attorney-General of India and having similar functions for the state. He is a person who is qualified to be a judge of a High Court and he is appointed by the Governor.

### Activity



Compare the powers of President and Government. Do you find any difference?

## 3.5.2. Council of Ministers headed by the Chief Minister

### Position of the Chief Minister

The Chief Minister is the head of the Cabinet and the Council of Ministers. In practice, he is the real executive head of the State. As per Article 164(1) of the Constitution of India, the Chief Minister of a State shall be appointed by the Governor of the State.

### Powers and Functions of the Chief Minister

As the real executive head of the State, the Chief Minister enjoys wide powers and performs a number of functions. The important powers and functions of the Chief Minister are:

i) As the head of the Council of Ministers, the Chief Minister has more powers in ministry-making. He can recommend appointment of ministers and designate them as Cabinet Ministers or Ministers of State or Deputy Ministers. He can change the portfolios of the ministers. He can even recommend the removal of ministers.

ii) He presides over the meetings of the Cabinet and makes major policy decisions of the Government.

iii) He acts as the sole channel of communication between the Council of Ministers and the Governor. He communicates to the Governor all the decisions of the Cabinet relating to administrative and legislative proposals.

iv) He scrutinizes all papers, bills, resolutions, etc. that are to be placed before the legislature.

v) Though, in theory, all major appointments are made by the Governor, in practice, all such appointments are actually made on the advice of the Chief Minister.

## State Council of Ministers

### Introduction

Article 163(1) of the Constitution of India provides that there shall be a



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